

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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 JAIMILY HERNANDEZ, as proposed administrator
 of the ESTATE OF VICTOR HERNANDEZ, deceased,
 and JAIMILY HERNANDEZ, individually,

Plaintiff,

-against-

Plaintiff designates
 New York County as the
 place of trial

Basis of venue is
 county of occurrence

SUMMONS

THE CITY OF NEW YORK,
 NYPD OFFICER MICHAEL BULIGA and
 NYPD OFFICER WHITNEY MARTIN,

Defendants.

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 To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
 January 11, 2021

Yours, etc.
 SIVIN, MILLER & ROCHE, LLP

By Edward Sivin

Edward Sivin
 Attorneys for Plaintiff
 20 Vesey St., Suite 1400
 New York, NY 10007
 (212) 349-0300

To:

-The City of New York, 100 Church Street, New York, NY 10007-NYPD Officer Michael Buliga, c/o NYPD 32nd Pct., 250 West 135 St., Manhattan, NY 10030-NYPD Officer Whitney Martin, c/o NYPD 32nd Pct., 250 West 135 St., Manhattan, NY 10030

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
JAIMILY HERNANDEZ, as proposed administrator
of the ESTATE OF VICTOR HERNANDEZ, deceased,
and JAIMILY HERNANDEZ, individually,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK,
NYPD OFFICER MICHAEL BULIGA and
NYPD OFFICER WHITNEY MARTIN,

Defendants.

----- X

Plaintiff, by her attorneys Sivin, Miller & Roche, LLP, complaining of
defendants, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff Jaimily Hernandez (hereinafter “plaintiff”) was the lawfully wedded spouse of Victor Hernandez (hereinafter “Hernandez”), who now is deceased.
2. That plaintiff is the proposed Administrator of the Estate of Victor Hernandez.
3. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, and maintained a police force known as the New York Police Department (hereinafter “the NYPD”).

5. That at all times herein mentioned, defendant NYPD Officer Michael Buliga (hereinafter “Buliga”) was and is employed as an officer with the NYPD.

6. That at all times herein mentioned, Buliga was acting within the course and scope of his employment as an officer with the NYPD.

7. That at all times herein mentioned, Buliga was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD Officer Whitney Martin (hereinafter “Martin”) was and is employed as an officer with the NYPD.

9. That at all times herein mentioned, Martin was acting within the course and scope of her employment as an officer with the NYPD.

10. That at all times herein mentioned, Martin was acting under color of state law.

11. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York’s Civil Practice Law & Rules § 1602 with respect to joint and several liability.

FACTS

12. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

13. That at all times herein mentioned, Hernandez resided at 2785 Frederick Douglas Boulevard, in the County of New York, City and State of New York (hereinafter “the premises”).

14. That on or about October 23, 2019, NYPD officers, including but not limited to Buliga and Martin, arrived at the premises.

15. That on or about October 23, 2019, NYPD officers, including but not limited to Buliga and Martin, arrived at the premises in response to notification to a 9-1-1 call center and the NYPD that a person on the premises was acting erratically.

16. That at all times herein mentioned, the City and the NYPD, including but not limited to Buliga and Martin, were under a duty to respond to the 9-1-1 call and notification in a safe and reasonable manner, such that persons at the premises would not be caused to sustain personal injuries.

17. That after the NYPD officers responded to the premises, Buliga and Martin intentionally shot Hernandez multiple times.

18. That prior to the shooting of Hernandez, the NYPD, including but not limited to Buliga and Martin, failed to take reasonable steps to adequately assess the situation at the premises.

19. That in light of all the surrounding circumstances, the shooting of Hernandez was without justification.

20. That immediately following the shooting, Hernandez was in the custody of the NYPD, including but not limited to Buliga and Martin.

21. That as a result of the aforementioned shooting, Hernandez suffered numerous and severe personal injuries, and endured pain and suffering.

22. That as a result of the aforementioned shooting and injuries, Hernandez was in need of immediate medical care and treatment while in the custody of the NYPD.

23. That the NYPD, including but not limited to Buliga and Martin, were under a duty to obtain prompt and adequate medical care for the treatment of Hernandez's injuries.

24. That the NYPD, including but not limited to Buliga and Martin, failed and refused to seek and obtain prompt and adequate medical care and treatment for Hernandez.

25. That the NYPD, including but not limited to Buliga and Martin, acted with deliberate indifference to Hernandez's medical needs.

26. That as a result of the aforementioned shooting and delay in obtaining prompt and adequate medical care and treatment, Hernandez was caused to endure additional pain and suffering, and eventually died.

27. That Hernandez's death resulted in economic and other loss to his wife (plaintiff herein) and children, deprived his wife and children of Hernandez's services and guidance, deprived his wife and children of Hernandez's earnings, and caused other injuries, economic and otherwise, to Hernandez's wife and children.

28. That the actions of the NYPD officers, including but not limited to Buliga and Martin, were intentional and malicious in nature.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Assault and Battery under NY Law)

29. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

30. That the aforesaid actions of the NYPD officers, including but not limited to Buliga and Martin, constitute an assault and battery of Hernandez, for which the Buliga, Martin, and the other officers are liable under New York law and for which the City is vicariously liable under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION AGAINST BULIGA and MARTIN

(42 U.S.C. § 1983: Use of Excessive Force)

31. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

32. That the aforesaid actions of Buliga and Martin, in assaulting and battering Hernandez constitute unlawful and unreasonable seizures of Hernandez in violation of the

prohibition against unreasonable seizures guaranteed to Hernandez under the Fourth Amendment of the U.S. Constitution.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Negligence/Recklessness in Performance of Duties under New York Law)

33. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

34. That the defendants' response to the situation at the premises, their assessment of the situation at the premises, their response to a situation that involved the potential of an emotionally disturbed person, their response after Hernandez was shot, and their delay in procuring adequate medical care and treatment for Hernandez, arose to the level of negligence and recklessness, for which defendants are liable under New York law.

FOURTH CAUSE OF ACTION AGAINST BULIGA and MARTIN

(42 U.S.C. § 1983: Deliberate Indifference to Medical Needs)

35. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

36. That Buliga and Martin's deliberate indifference to the medical needs of Hernandez constitute a denial of Hernandez's rights to due process, as guaranteed by the Fourteenth Amendment to the U.S. Constitution, and entitles plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Wrongful Death under New York Law)

37. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

38. That the aforementioned actions of the NYPD, including but not limited to Buliga and Martin, wrongfully and unjustifiably caused and contributed to Hernandez's death, and entitle plaintiff and Hernandez's estate to recover all damages resulting therefrom.

SIXTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, Supervision, and Retention)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforesaid actions by the NYPD officers, including but not limited to Buliga and Martin, and the resulting damages to plaintiff and Hernandez, were the result of the negligence of the City in its hiring, training, supervision, and retention of the NYPD officers, including but not limited to Buliga and Martin.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action in the form of compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against Buliga and Martin in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against Buliga and Martin pursuant to 42 USC § 1988.

Dated: New York, New York
January 11, 2021

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
January 11, 2021

Edward Sivin

EDWARD SIVIN